

Amar Nath Singh v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 1 March 2023 · Writ-C No. 6065 of 2023 · **Petition disposed; representation to be decided in four weeks; recovery stayed**

HEADNOTE

Writ disposed without any opinion on merits, directing respondent no. 5 to decide by a speaking order within four weeks the representation dated 17 December 2022 filed after a Clause 6.5 decision that left the consumer to file evidence and seek reduction or increase of load; coercive recovery stayed until that decision.

FACTUAL SUMMARY

The petitioner sought quashing of respondent no. 5's order dated 5 December 2022 and of recovery under a citation dated 9 May 2022, and a direction to decide his representation dated 17 December 2022. In earlier Writ-C No. 25178 of 2022, the Court on 22 September 2022 left him to Clause 6.5 of the Electricity Supply Code, 2005. The Department's order of 5 December 2022 left him to file evidence and apply for reduction or increase of load, after which he made that representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Pending representation after a Clause 6.5 decision

HOLDING

Where a representation remains pending after the consumer was left to Clause 6.5 and the Department, in that decision, left him to file evidence and apply for reduction or increase of load, and the Department agrees to decide the representation, the writ is disposed of without any opinion on merits by directing a speaking order within four weeks and restraining coercive recovery until that decision. ¶ 2-3

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided After the Clause 6.5 decision of 5 December 2022 left the consumer to file evidence and apply for a change of load, the Court disposed of the writ by directing respondent no. 5 to decide the representation dated 17 December 2022 by a speaking order within four weeks, without expressing any opinion on merits. ¶ 2-3

para-6.5-objection-before-coercive-recovery Until respondent no. 5 decides the representation dated 17 December 2022, the Electricity Department is not to take any coercive measure for recovery of the amount. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ORDER DATED 5 DECEMBER 2022, THE RECOVERY CITATION DATED 9 MAY 2022, AND THE REQUEST FOR REDUCTION OR INCREASE OF LOAD

The writ was disposed without any opinion on merits; those questions were left to the speaking order on the representation dated 17 December 2022. ¶ 3